different from that of Christianity, and therefore, except for the purposes of enjoyment of equal rights under the Constitution, the conceptual and theoretical frameworks of Indic OET and Christian OET are not and cannot be treated as the same. It is in this context that the assertion is typically made that 'Hinduism', given its approach to the concept of soul and consciousness, its relationship with nature, and its diverse and federal character reflected by the nature of the Indic civilisation, is vastly different from monochromatic, monotheistic and centrally organised religions, such as Islam and Christianity. It is this distinction that leads to the widely misunderstood summation that Hinduism is more a 'way of life' and therefore, comparisons with Christianity and Islam are misplaced.

This summation can be traced to the judgments of the Supreme Court of India in *Shastri Yagnapurushdasji and others* v. *Muldas Bhundardas vaishya and another*[10] and *Bramchari Sidheswar Bhai & ors.* v. *State of West Bengal*,[11] wherein the Apex Court distinguished Hinduism from the Islamic and Christian understanding of 'religion'. A reading of the said judgments reveals that, surprisingly, the position of the Supreme Court is largely consistent with the decolonial position that Indic faith systems are distinct from both Abrahamic religions, and yet qualify for protection under the constitution as 'the Hindu religion'. In other words, the Supreme Court, while recognising that Sanatana Dharma cannot be understood through the Abrahamic construct of 'religion', has not taken away the right of Dharmic OET systems to be treated as 'religion' for the purposes of enjoyment and exercise of constitutionally guaranteed fundamental freedoms.

Extracted below are a few relevant excerpts from *Shastri Yagnapurushdasji* judgment:

> When we think of the Hindu religion, we find it difficult, if not impossible, to define Hindu religion or even adequately describe it. Unlike other religions in the world, the Hindu religion does not claim any one prophet; it does not worship any one God; it does not subscribe to any one dogma; it does not believe in any one philosophic concept; it does not follow any one set of religious rites or performances; in fact, it does not appear to satisfy the narrow traditional features of any religion or creed. It may broadly be described as a way of life and nothing more.